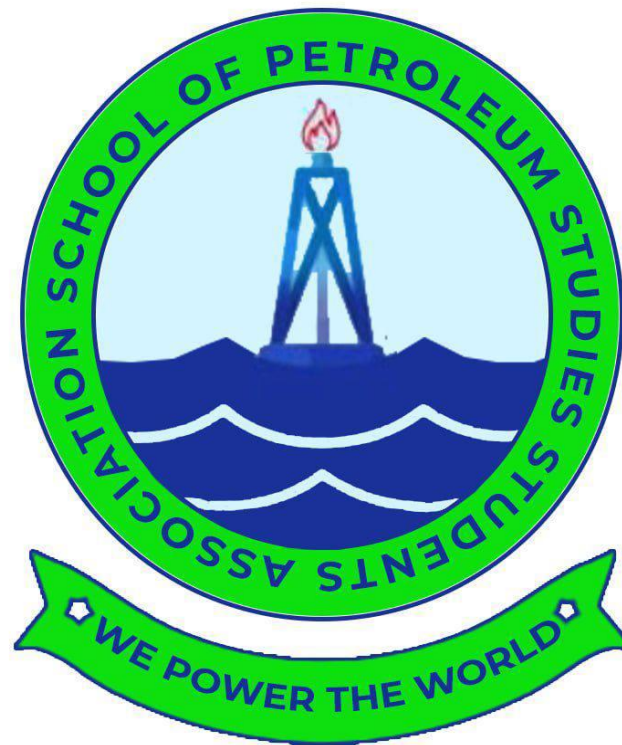


THE SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION



THE SpetSSA REVIEWED CONSTITUTION

TABLE OF CONTENTS

PREAMBLE.....	v
CHAPTER 1: THE CONSTITUTION	1
ARTICLE 1: NAME	1
ARTICLE 2: SUPREMACY OF THE CONSTITUTION.....	1
ARTICLE 3: ENFORCEMENT OF THE CONSTITUTION	1
CHAPTER 2: AIMS AND OBJECTIVES OF SPetSSA	3
ARTICLE 4: AIMS AND OBJECTIVES OF SPetSSA	3
CHAPTER 3: MEMBERSHIP	4
ARTICLE 5: ELIGIBILITY.....	4
ARTICLE 6: RIGHTS OF MEMBERS	4
ARTICLE 7: RESPONSIBILITIES OF MEMBERS.....	4
CHAPTER 4: COMPOSITION AND FUNCTIONS OF SPetSSA	5
ARTICLE 8: COMPOSITION OF SPetSSA	5
ARTICLE 9: EXECUTIVE COUNCIL	5
ARTICLE 10: FUNCTIONS OF THE EXECUTIVE COUNCIL	5
ARTICLE 11: THE SPetSSA SENATE ASSEMBLY	6
ARTICLE 12: FUNCTIONS OF THE SENATE ASSEMBLY.	7
ARTICLE 13: JUDICIAL COUNCIL	7
ARTICLE 14: DUTIES OF THE JUDICIAL COUNCIL	8
CHAPTER 5: DUTIES OF OFFICERS	10
ARTICLE 15: DUTIES OF THE OFFICERS.....	10
1. THE PRESIDENT	10
CHAPTER 6: COMMITTEES OF SPETSSA	15
ARTICLE 16; COMMITTEES OF SPetSSA.....	15
CHAPTER 7: INDEPENDENT COMMISSION/COMMITTEES	20
ARTICLE 17; INDEPENDENT COMMISSION(S)/COMMITTEE(S)	20
17.1 ELECTORAL COMMISSION;.....	20
ARTICLE 18: GENERAL ELECTIONS.....	21
ARTICLE 19: CONDUCT OF ELECTIONS	21
ARTICLE 20: ELIGIBILITY	23
ARTICLE 21: DISQUALIFICATION	24
ARTICLE 22: BYE-ELECTION	24

ARTICLE 23: CHALLENGING ELECTIONS	25
ARTICLE 24: DEPARTMENTAL APPOINTEES	25
CHAPTER 8: ADMINISTRATION OF FUNDS.....	27
ARTICLE 25: ADMINISTRATION OF FUNDS.....	27
25.1 REVENUE OF SPETSSA	27
25.2 BANKING AND WITHDRAWAL OF FUNDS	27
25.3 BUDGET	28
25.4 AUDITING	28
CHAPTER 9: MEETINGS	30
ARTICLE 26: GENERAL MEETINGS	30
ARTICLE 27: EXECUTIVE COUNCIL MEETINGS	31
CHAPTER 10: STANDING ORDERS	32
ARTICLE 28; STANDING ORDERS FOR MEETINGS	32
28.1 VOTING.....	32
28.2 MOTIONS	32
28.3 AMENDMENTS	33
28.4 ORDER OF PRECEDENCE.....	33
28.5 POINT OF INTERVENTIONS.....	34
28.6 BREACH OF ORDER.....	35
CHAPTER 11	36
ARTICLE 29: HONORARIA	36
ARTICLE 30: PATRONS.....	36
ARTICLE 31: COMPLAINTS.....	36
ARTICLE 32: INDEMNITY.....	37
CHAPTER 12: REMOVAL FROM OFFICE	38
ARTICLE 33: REMOVAL FROM OFFICE.....	38
33.1 Resignation.....	38
33.2 Grounds for Removal	38
33.3 Impeachment	39
33.4 Vote of No Confidence	40
CHAPTER 13: AMENDMENTS	41
ARTICLE 34: AMENDMENTS	41
CHAPTER 14: TRANSITION AND HANDOVER.....	42

ARTICLE 35; TRANSITION AND HANDOVER	42
CHAPTER 15: MISCELLANEOUS	43
Article 36: MISCELLANEOUS	43
ARTICLE 37: INTERPRETATION	43
ARTICLE 38: INVITATIONS TO MEETINGS.....	44
ANNEX B: TRANSITIONAL PROVISIONS.	44
CHAPTER 16: THE OATH OF OFFICERS	45
THE OATH OF THE PESIDENT	45
THE OATH OF THE VICE PRESIDENT	45
THE OATH OF THE JUDICIAL COUNCIL CHAIRPERSON	45
THE OATH OF OTHER EXECUTIVE MEMBERS.....	46
THE OATH OF THE JUDICIAL COUNCIL	46
OATH OF ALLEGIANCE FOR COMMITTEE MEMBERS	46
RATIFICATION FORM.....	47

PREAMBLE

Without a lot of uncertainty in the existence of the Omnipotent God, the first cause, and mindful of the fact that no community works without laws and leadership; We, the students of the School of Petroleum Studies of the University of Mines and Technology, in order to promote peaceful co-existence of members, desirous to promote the welfare of students, fraternal solidarity and fellowship amongst ourselves and members of other Associations;

Cognizant of the need to promote healthy competition between us and other Associations; wholeheartedly determine to attain the peak of excellence in our moral, spiritual, cultural, political and intellectual endeavor;

Determined to ensure unity and common voice of members;

**DO HEREBY ADOPT, DECREE AND GIVE TO OURSELVES THIS CONSTITUTION
AS THE SUPREME LAW OF THE SCHOOL OF PETROLEUM STUDIES STUDENTS
ASSOCIATION ON THIS DAY OF**

CHAPTER 1: THE CONSTITUTION

ARTICLE 1: NAME

The governing body of the students at School of Petroleum Studies of the University of Mines and Technology shall be referred to as the **SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION**, herein referred to as the “**SPetSSA**” or the "Association".

ARTICLE 2: SUPREMACY OF THE CONSTITUTION

2.1 This constitution shall be the supreme law of the students of the School of Petroleum Studies of the University of Mines and Technology. Any constitution and/ or law found to be inconsistent with the provisions of this constitution shall to the extent of inconsistency be null and void.

2.2 Notwithstanding **clause (1)** supra, this constitution shall be subject to the laws of Ghana, the Act of Parliament that establishes this University, the University Statutes, any other rules of the University and the SRC constitution.

ARTICLE 3: ENFORCEMENT OF THE CONSTITUTION

3.1 Any student who alleges that an act or omission by any person or group of persons is inconsistent with or is in contravention of a provision in this constitution may apply to the Judicial council for a declaration to that effect.

3.2 The Judicial council shall for the purposes of such declaration under the **clause (1)** of this article:

- a) Make such orders and give such declarations as it may consider appropriate for giving effect or enabling effect to be given the direction so made.

- b) Failure to obey or carry out the terms of an order or direction made under paragraph (a) of this clause shall constitute a violation of this constitution and contempt of the Judicial council.

CHAPTER 2: AIMS AND OBJECTIVES OF SPetSSA

ARTICLE 4: AIMS AND OBJECTIVES OF SPetSSA

The Association is established mainly:

- a) To serve as the mouthpiece of the entire membership of the association.
- b) To seek and pursue the general welfare of the members and to advice in relation to such matters concerning the members welfare.
- c) To promote cordial relations between its members and sister associations in so far as the aims and objectives of such associations do not contradict the letter and spirit of this constitution.
- d) To pursue such policy programs that shall be necessary for the attainment of academic, social and professional standards in the association.
- e) To promote and market the products of the faculty to the industrial world.
- f) To be responsible for the supervision of the organization of orientation programs for fresh students at the beginning of every academic year.
- g) To foster healthy relations and liaise with professionals in the industry for educational benefits.

CHAPTER 3: MEMBERSHIP

ARTICLE 5: ELIGIBILITY

- a) For the avoidance of doubt, membership of SPetSSA shall be automatic for all students pursuing various programs of study under the School of Petroleum Studies in the University of Mines and Technology.
- b) Honorary membership shall be accorded to all members of the association who have graduated.
- c) Philanthropists and well-wishers who have contributed immensely to SPetSSA may be accorded honorary membership as may be determined by the Executive Council. Membership of the association shall not be restricted due to race, sex, religion, color, nationality or ethnic origin, age, disability, military service or sexual orientation.

ARTICLE 6: RIGHTS OF MEMBERS

Every member has the right:

- a) To express his/her opinion in a constructive and objective manner on any issue at a meeting.
- b) To vote at all elections and referenda, except that specified in this constitution.
- c) To have access to necessary information concerning the association.
- d) To apply for any office / vacant office in the association subject to vetting and approval, provided the member meets all eligibility requirement for candidacy.

ARTICLE 7: RESPONSIBILITIES OF MEMBERS

Members of the Association shall be responsible for the following;

- a) To attend all functions / programs of the association including meetings.
- b) To protect, defend and uphold the good name of SPetSSA.
- c) To pay his/her association dues regularly.
- d) To protect all association properties.
- e) To uphold and defend the constitution of the association.

CHAPTER 4: COMPOSITION AND FUNCTIONS OF SPetSSA

ARTICLE 8: COMPOSITION OF SPetSSA

The association shall comprise -

- I. Executive Council
- II. Senate Assembly
- III. Judicial Council

ARTICLE 9: EXECUTIVE COUNCIL

There shall be a body known as **Executive Council** comprising of the following:

- a) Executive Committee
- b) Class Representatives
- c) Departmental Representatives
- d) SPE Representative

There shall be an **Executive Committee** comprised of the following

- i. The President (*Who shall represent the faculty at the SRC Legislative Assembly*)
- ii. The Vice President
- iii. The Treasurer
- iv. The General Secretary
- v. The Organizer
- vi. Public Relations Officer (*PRO*)
- vii. The Women's Commissioner

ARTICLE 10: FUNCTIONS OF THE EXECUTIVE COUNCIL

The Executive Council shall:

- a) Shall in times of emergency, have the power to act promptly without prejudice to any provision of this constitution, where the University is on vacation or within two weeks of re-opening or where a situation cannot permit summoning Senate when school is in session.

Senate shall however be informed as soon as practicable through any appropriate means or medium.

- b) Shall be responsible for the formulation of policies and planning of all programs of the association.
- c) Shall implement any provision in this constitution.
- d) Shall present to the Senate, a program of activities at the first general meeting of each semester for approval.
- e) Shall prepare and present to Senate, a budget for the academic year at the first Senate meeting, of the first semester of the academic year.
- f) Shall have the responsibility of ensuring that, their total expenditure for the academic year does not exceed seventy percent (70 %) of the total income generated by the association.
- g) Shall be the main implementing body of the decisions of the Senate unless otherwise stated.
- h) Shall develop and implement a strategic plan for the association approved by the Senate.

ARTICLE 11: THE SPetSSA SENATE ASSEMBLY

- a) There shall be established in SPetSSA, a Senate which shall be the highest decision-making body of the association with the membership comprising:
 - i. SPetSSA Speaker (*who shall be appointed by the President-elect subject to the approval of the outgoing Senate*)
 - ii. The Deputy Speaker (*who shall be elected from amongst the members of Senate*)
 - iii. Clerk (*who shall be appointed by the Speaker in consultation with the sitting clerk subject to the approval of the outgoing Senate*)
 - iv. Marshal (*who shall be appointed by the Speaker-elect*)
 - v. One Representative from each class (*Elected by members of the class*)
 - vi. All Heads of SPetSSA standing committees, except those headed by a member of the executive committee.

ARTICLE 12: FUNCTIONS OF THE SENATE ASSEMBLY.

- a) Shall concern itself with matters of general policy and other issues referred to it by members.
- b) Notwithstanding paragraph (a) **supra** of article (12), the Senate shall on its own initiative consider and make recommendations on any matter provided for in this constitution which is affecting the welfare and interest of the members of the association.
- c) Shall determine such issues as are introduced by way of motions as per provisions of standing orders of the Parliament of Ghana and that of the SRC Legislative Assembly
- d) Its Appointment committee shall screen and approve all executive(s) nominated by the Executive Council and shall present to the Senate for approval.
- e) Shall approve or decline all recommendations and policies presented to it by the Executive Council.
- f) The Senate shall have power to invite any member of the organs of the SPetSSA (except the President and Judicial Chair) and any other student(s) to answer questions on matter relating to his area of operation or otherwise.
- g) Shall approve the Annual budget of the Executive Council by (2/3) two-thirds majority of the Senate.

ARTICLE 13: JUDICIAL COUNCIL

There shall be an independent judicial council which shall comprise of:

- i. A chairperson, secretary and five other members, preferably from each class of proven ability and unblemished records appointed by the President-elect subject to the approval of the outgoing Senate.
- ii. The Judicial council shall be subject to this constitution and the SRC constitution only and shall not be subjected to the control or direction of any person(s) or authorities of the students.
- iii. Neither the Executive Committee, the Senate nor any other person whatsoever, shall interfere with the members of the Judicial council in the exercise of their functions.

- iv. All students and committees shall accord the Judicial Chair such assistance as if may reasonably require protecting the independence, dignity and effectiveness of the Judicial council subject to this constitution.
- v. For the avoidance of doubt, it is hereby declared that, no member of the Judicial council shall be liable to any action or suit for any act or omission by him in the exercise of judicial power.

ARTICLE 14: DUTIES OF THE JUDICIAL COUNCIL

The Judicial council shall have jurisdiction in the following matters:

- a) In every matter relating to the enforcement and interpretation of any provision to this constitution.
- b) In every matter where it is alleged that a person or group of persons of the association have acted ultra vires or abuse the powers conferred on him/ them by this constitution or any provision for the time being in force.
- c) The hearings of the Judicial council shall be public except where the council finds it advisable to descent. The council shall have the powers to **subpoena** any member of the association to appear before it and the member shall oblige. However, when the Judicial council descends a public hearing, it shall render a full report of the proceedings by a way of publication to the members of the association.
- d) The Judicial council shall supervise the transfer of power to the new officers.
- e) The decision of the Judicial council in all matters relating to the members of this association shall be a simple majority and final unless otherwise specified in this constitution.
- f) The Judicial council shall have the power to prescribe any appropriate punishment giving regard to the provisions of this constitution provided the association shall be capable of enforcing the punishment so prescribed.
- g) In the exercise of its functions, the Judicial council shall be subject only to provisions of this constitution and the general University regulations and shall not be subject to the control or direction of any person or authority. Notwithstanding, any provisions to the

contrary, the Judicial council shall through the SRC, recommend any decision to the appropriate authorities of the faculty for implementation.

- h) Vet and appoint all members of the Electoral Commission from the membership of the association. The Electoral Commissioner shall spearhead the electoral commission in conducting all elections, by-elections and referenda of the association.
- i) Shall have the power to constitute a vetting committee to vet all nominated candidates for any executive office in the association with the Judicial Chairperson as the chairperson of the committee.

CHAPTER 5: DUTIES OF OFFICERS

ARTICLE 15: DUTIES OF THE OFFICERS

1. THE PRESIDENT

The President shall:

- a) Be the chief Executive officer in which capacity he shall be responsible for coordinating the functions of the association.
- b) At the beginning of the semester (within the first four weeks) and before the dissolution of **The Senate**, deliver to The Senate a written address on the state of affairs of the association.
- c) Present the opinions and interests of the members of the associations to the faculty authorities.
- d) Summon through the General Secretary, and preside over all meetings of the Executive Council, general and emergency meetings of the association.
- e) Countersign all cheques, vouchers and money bills issued in the name of the association.
- f) In consultation with the Executive Council have the power to appoint chairpersons and/or members of committees of the association.
- g) Appoint the faculty Judicial council Chairperson subject to the approval of the outgoing Senate.
- h) Communicate to the Speaker of the Senate and copy to the faculty Judicial council Chairperson, a written document of his intention to travel outside the region before that travel.
- i) Cast a vote when there is a tie on a decision at Executive Council meetings.
- j) Assign any extra official duties to any of the executive officer.
- k) Take disciplinary actions against any officer(s) who refuse(s) to perform his(their) duties as stipulated in this constitution, and also anyone who shall absent themselves from Executive Council meeting or general/ emergency meeting without express permission subject to the approval of the Executive Council.
- l) Represent the association at the Legislative Assembly.

- m) Together with the General Secretary sign minutes of all Executive Council and general meetings.
- n) Be responsible to present the state of SPetSSA at every general meeting subject to the approval of the Senate.
- o) Be responsible for the presentation of the policy document of the association at first general meeting of the first semester for a consensus and subsequent approval by the Senate.

2. THE VICE-PRESIDENT

The Vice-President shall:

- a) Assume the office of the President in his/her absence or inability to act.
- b) Preside over all meetings in the absence of the President.
- c) Assist the President in his/her duties.
- d) Be in charge of all Committees of the association except the independent committees or otherwise stated in this constitution.
- e) Shall perform any other duties assigned to him by the president or the Executive Council.

3. THE GENERAL SECRETARY

The General Secretary shall:

- a) Record and keep minutes of all Executive Council and general meetings.
- b) Publish the minutes of all general meetings, at most one week for the benefit of the membership of the association.
- c) Publish the names of committee members one week after formation.
- d) Keep records of the membership of the association.
- e) Summon all meetings under the President's order stating the agenda, date, time, and venue of the meeting.
- f) Conduct all correspondence in the name of the association.

4. THE TREASURER

The Treasurer shall:

- a) Keep financial records of the association.
- b) Be the Chairperson of the Financial Committee.
- c) Together with the President and the Head of department be the signatories to all bank accounts.
- d) Present the annual budget of the association for a consensus and further approval of the Senate.
- e) Together with the finance committee be responsible for fund raising activities on behalf of the association.
- f) Together with the finance committee and the heads of the committees draft a semester budget for the association.
- g) Take inventory of the association's equipment or properties.
- h) Have custody of association's cheques and cashbooks; and keep all monies in the banks.
- i) Have responsibility for all financial accounts and keep true records of all financial records and assets of the association.

5. THE ORGANIZER

The Organizer shall:

- a) Protect all properties of the association
- b) Know the location of all movable and immovable assets of the association.
- c) Perform any other role assigned to him/her by the President, Executive Council and the organizing committee.
- d) Ensure that logistics are provided for any event that is organized in name of the Association.
- e) Be the general overseer of all forms of organization done for programs and projects.

6. THE PUBLIC RELATIONS OFFICER

The Public Relations Officer who shall:

- a) Together with the editorial board, publicize all activities of SPetSSA and any other publication of the association.
- b) In consultation with the leadership of the Association answer all questions.
- c) In consultation with the leadership of the association, encourage member of the association to desist from any form of unruly behavior unworthy of praise and emulation, through articles and illustrations.
- d) Present a financial estimate of the editorial board to the financial committee of the Association.
- e) Present the semester calendar of the Association by the third week of each semester in consultation with all of the bodies concerned.
- f) Be the chief editor of the association.
- g) Be responsible for handling all social medial account of the association.
- h) Be the chairperson of the editorial board.
- i) Perform any extra duties assigned by the President, Executive Council and the editorial board.

7. WOMEN'S COMMISSIONER

The Women's Commissioner shall:

- a) Be the head of the Women's Commission of SPetSSA.
- b) Be a member of the SRC Women's Commission.
- c) Be a member of the SPetSSA Women's Commission
- d) Be responsible for organizing all women's activities of SPetSSA.
- e) Represent the Women's Commission of the association in diaspora meetings.
- f) Be the secretary of the organizing committee.
- g) Assist the Organizer in organizing all activities and programs of SPetSSA.

- h) Organize a women's week for the women of the Association every year.

8. DEPARTMENTAL REPRESENTATIVES

This shall be Representatives from the recognized departments under SPetSSA

The Departmental Representation shall:

- a) Be the representative of the chief Executive officer (*the president*) in which capacity he shall be responsible for coordinating the functions at the departmental level.
- b) Present the opinions and interests of the members of the associations to the departmental authorities.
- c) Summon through the Departmental Secretary, and preside over all meetings of the department.
- d) Represent the department at the Executive Council.
- e) Together with the Departmental Secretary sign minutes of all meetings held at the department.
- f) Be responsible for the presentation of the policy document of the department not less than four (4) days before the first general meeting of the first semester.
- g) Submit the semester budget to the financial secretary not later than five (5) days after the commencement of the semester.
- h) Appoint two members from their respective department subject to the approval by the Judicial council. Namely, A Departmental secretary and A Public Relations Officer.

CHAPTER 6: COMMITTEES OF SPETSSA

ARTICLE 16; COMMITTEES OF SPetSSA

The Association shall have the power to create standing and/or ad-hoc committees to deal with matters in pursuance of its aims. The following Standing committees (except the ad-hoc committees) of the Association shall be established or formed within the membership of the Association;

- a) Finance Committee
- b) Sports and Games Committee
- c) Editorial Board
- d) Organizing Committee
- e) Entertainment Committee
- f) Welfare Committee
- g) Ad-Hoc Committee

1. FINANCE COMMITTEE

(a) Membership

There shall be established a five (5) member finance committee.

- i. The Treasurer shall be the chairperson.
- ii. Four other members appointed by the President subject to the approval of the Executive Council.

(b) Functions

The committee shall:

- i. Keep records of all assets or properties of the Association.
- ii. Be responsible for seeking sponsorship and organizing fund raising activities for the Association
- iii. Assist the Treasurer in his/her duties

- iv. Together with the Treasurer and the committees of the Association draft the semester budget of the Association.

2. SPORTS COMMITTEE

(a) Membership

The committee shall comprise of:

- i. A five member sports and games committee, with a chairperson and secretary inclusive
- ii. The sports chairperson shall be appointed by the President in consultation with the Executive Council subject to the approval of the Senate.
- iii. The Deputy Sports Chairperson who shall preferably be a female
- iv. The coaches of the various levels in the department

(b) Functions

The Sports Committee shall perform the following functions:

- i. Organize all Association sponsored sporting activities and submit a report afterward to the Executive Council and the Senate for their perusal.
- ii. Recommend outstanding sportsmen for awards and certificates.
- iii. The Chairperson shall represent the association on the SPetSSA sports and games committee and the SRC Sports and Games Committee.

3. EDITORIAL BOARD

(a) Membership

- i. There shall be established under the Association an editorial board which shall comprise the PRO, three (3) other members and the other PROs from the various departments.

(b) Functions

As functions, the Editorial board shall:

- (i) Be responsible for the publishing of all Association sponsored publications Including students' newspaper, magazine and journals.
- (ii) Strategize and disseminate information on all Association activities.

- (iii) Perform any other functions as may be assigned to it by the President of the Executive Council.
- (iv) They shall be in charge of the management of the Association's notice boards

4. ENTERTAINMENT COMMITTEE

a) Membership

There shall be a five-member entertainment committee which shall comprise of a chairperson and four other members who shall be appointed by the president subject to the approval of the Senate.

(b) Functions

- i. Coordinate the entertainment committee of the association
- ii. Be responsible for the planning of all Association sponsored entertainment and development activities
- iii. Shall perform any other duties assigned to them by the President or any other Executive Council.

5. AD-HOC COMMITTEE

The Association shall form ad-hoc committee(s) to perform any function(s) as and when duly necessary.

A detailed report shall be submitted to the Senate after the committee has duly completed the task given it. A copy of that report shall also be submitted to the Executive Council.

6. ORGANIZING COMMITTEE

a) Membership

There shall be established in SPetSSA a six-member organizing committee comprising of

- I. Organizer
- II. Women's commissioner (Secretary)
- III. The Publicity Officer

IV. The Public Relations Officer

And two other members who shall be appointed by the President in consultation with the Executive Council subject to the approval of the Senate.

b) Functions

- I. Recommend the movement of some asset of the Association and also keep records of the movement of these assets
- II. Report to the SPetSSA Senate on the misuse of any such facilities or properties by any officer or student as the case may be.
- III. If solutions are not provided in the case of **II supra**, the organizing committee if deemed necessary shall report the said misuse to the President of the Association for due communication at the Legislative Assembly.
- IV. Shall be responsible for drafting of all programs of the association for each of the semesters
- V. Shall be responsible for the organization of all meetings, programs and activities of SPetSSA.
- VI. Shall perform any other function assigned to them by the President or Executive Council.

7. WOMEN'S COMMISSION.

a) Membership

- i. The Women's Commissioner
- ii. A representative from each course year of study.

b) Functions

The Women's Commission shall:

- i. Promote the interest and rights of women in the Association.
- ii. Encourage active participation of female students in leadership positions, roles, and Association activities and inculcate into the female students a sense of inclusion, belongingness and solidarity.

- iii. Create a link between female students in the Association and women's groups with the aim of sharing ideas and strategies on related issues.
- iv. Undertake any other activities or functions assigned to the commission by the President and Executive Council.

8. WELFARE COMMITTEE

a) Membership

There shall be a four-member welfare committee which shall comprise of a chairperson and three (3) other members who shall be appointed by the president subject to the approval of the Senate

b) Functions

- I. Find solutions to matters relating to the general welfare of students
- II. Shall be the liaison between the students and the University's Sanitary office.
- III. Shall be in charge of all transportation affairs of the association if the need be.
- IV. Shall ensure that standard medical services are rendered to students within the association.
- V. Oversee the guidance and award of scholarships to deserving students if the need be.
- VI. Shall act as a counselling body to students under the association.

9. PRESIDENTIAL ADVISORY TEAM (PAT);

There shall be established a four (4) member Presidential Advisory Team comprising;

- I. The Leading Opposition Leader. In case there is none, the Association President shall appoint a member from the student body.
- II. The immediate past Association President. In case there is none available, any member of the previous Executive Council.
- III. Any other person appointed by the Association President.
- IV. The chief of staff appointed by the president subject to the approval of the outgoing chief of staff. e committee shall advise the President on all matters.

CHAPTER 7: INDEPENDENT COMMISSION/COMMITTEES

ARTICLE 17; INDEPENDENT COMMISSION(S)/COMMITTEE(S)

17.1 ELECTORAL COMMISSION;

a) Membership

There shall be an Electoral Commission who shall with the necessary aide and support of the SRC Electoral Commission be responsible for organizing all the Association's sponsored elections.

The Electoral Commission shall comprise the following:

- i. The Electoral Commissioner
- ii. One Deputy Electoral Commissioner
- iii. The Secretary
- iv. Three co-opted members

The members of the Commission shall be appointed by the Judicial council.

The commission shall have the authority to make rules/regulations without prejudice to the provisions of this constitution for the exercise and execution of its functions and electoral proceedings.

b) Functions

The Electoral Commission shall have the following functions;

- I. To compile voters' register and revise it at such periods as may be determined by the constitution of SPetSSA.
- II. To demarcate the electoral boundaries for all the association's elections.
- III. To educate the student populace of SPetSSA on the electoral processes and its purpose.
- IV. To conduct and supervise all the elections and referenda of the association.
- V. To perform such other functions as may be prescribed in this constitution.

ARTICLE 18: GENERAL ELECTIONS

- I. Every member of the Association has the legitimate right to exercise his or her franchise.
- II. The following officers of the Executive committee shall be elected by popular secret ballot by the members of the Association:
 - a) The President
 - b) The Treasurer
 - c) The General Secretary
 - d) The Organiser
 - e) Public Relations Officer (PRO)
 - f) The Women's Commissioner
 - g) Departmental Representatives
- III. Association elections shall be held not later than the eighth week of the second semester of the academic year in accordance to the SPetSSA constitution.
- IV. All offices shall be held for one academic year and any retiring officer shall be eligible for re-election subject to satisfying all relevant provisions of the constitution.

ARTICLE 19: CONDUCT OF ELECTIONS;

The following regulations shall be followed in all SPetSSA sponsored elections:

- I. A simple majority shall be required to win election.
- II. Candidates who stand unopposed shall require at least 50% +1 of the valid votes cast to win the position thereof.
- III. In the event of a tie, fresh election shall be held for the candidates involved.
- IV. Subject to the approval of the Judicial council, the Electoral Commissioner shall be empowered to add any other rules accepted by the Electoral Commission of Ghana that he deems necessary to ensure the smooth running of elections.
- V. Any candidate who shall be guilty of an electoral offence shall be withdrawn from the elections and referred to the Judicial council for further appropriate sanctions.
- VI. Where irregularities are detected at any polling station during voting, the results from that polling station shall be declared null and void by the Electoral Commissioner and fresh

elections conducted for all eligible voters at that polling station within seventy-two (72) hours.

- VII. Electoral procedures on which this constitution is silent shall be referred to the Judicial council and the Electoral Commission of the University whose ruling shall be final.
- VIII. Printed ballot paper with a list of candidates contesting, and their respective posts shall be made available to all voters and each voter shall be entitled to one ballot paper. A list of candidates contesting for various posts shall be displayed at every polling station with their passport sized photographs.
- IX. All manifesto reading and debates should be done by, at most, three (3) days preceding the elections, and any other form of campaigning should cease twenty-four (24) hours to the elections.
- X. If the office(s) of the General Secretary and/or Treasurer is/are vacant at the close of nomination period, the nomination time shall be extended by twenty-four (24) hours and the student body duly notified. If there still remains the vacancy after the twenty-four (24) hour extension, the elections shall proceed and the Association President elect shall within seven (7) days of his election appoint the said Executive officer(s) to be approved by the membership of the association in a referendum.

However, if the post of the President is vacant at the close of the nomination period, the nomination time shall be extended by forty-eight (48) hours and the student body duly notified. If the post still remains vacant after the stipulated time, the outgoing Executive Council shall appoint a member of the association who shall be approved by the membership of the association through a referendum.

- XI. Voting shall be at the polling stations which shall be determined by the Electoral Commissioner and shall be from the hours of 07:00 GMT to 15:00 GMT. The Electoral Commissioner shall after counting declare provisional results. After the elections, all electoral disputes should be directed to the Judicial council and Electoral Commission of Ghana for redress within 72 hours.
- XII. All posters used for campaigning must be removed by midnight on the eve of the voting day.

- XIII. The old officers shall hand over power to the new officers within ten (10) days after declaration of election results.
- XIV. All elections shall be by secret ballot and every voter shall provide his/her university Student's Identity Card before he/she will be allowed to vote.
- XV. The voters register should be displayed on all departmental notice boards, at least a week to the elections for the perusal of students and irregularities reported to the Electoral Commissioner for the necessary corrections to be affected.
- XVI. All ballot papers for Association elections shall be procured by the Electoral Commission of the Association.
- XVII. The Association shall foot bills for the Electoral Commission of the association.

ARTICLE 20: ELIGIBILITY;

- I. A Student in the Association is eligible for election provided he is not in his first or final year of study.
- II. Nomination papers shall be in duplicate and shall be collected from the Electoral Commissioner.
- III. A candidate shall be nominated by one member of the Association and then seconded by another and the candidate shall assent to his nomination by his signature.
- IV. A copy of the nomination papers shall be deposited with the Electoral commissioner. Candidates shall keep the second paper.
- V. Any student who wishes to stand for elections conducted by the Association shall submit himself to the Vetting Committee, which shall be formed by the Judicial council, for thorough vetting. Notwithstanding any provision in this constitution, the Vetting Committee shall be required to give a full report on all candidates so vetted to the Judicial council at a reasonable time (at most five (5) days after vetting).

The Vetting Committee shall be a five (5) member committee comprising of members from the faculty chosen by the judicial council with the Judicial Chairperson as the Chairperson of the committee.

- VI. Any student who qualifies to contest elections and intends to contest any position shall make available two (2) passport-sized photographs of himself accompanied with duly filed nomination forms and CV to the Electoral Commissioner not later than a date and time specified by the Electoral Commission.
- VII. The Presidential candidate shall submit an action plan in addition to the duly filed nomination forms and CV to the Electoral Commissioner.
- VIII. The candidates contesting for the position of the President shall declare their running mates seventy-two (72) hours before vetting.
- IX. There shall be an observer who shall be invited by the Vetting Committee. The observer (who shall be a Lecturer) shall be nominated by the Faculty Dean. He shall not participate in the entire vetting process

ARTICLE 21: DISQUALIFICATION;

A candidate shall be disqualified from contesting in an election under this constitution where:

- I. He or she has been declared by the findings of the Judicial council to be incompetent to hold any position or office in the Association.
- II. He or she has been voted out of any office in this university for stated misconduct.
- III. He or she has been found guilty of embezzlement, misappropriation of Students' or Association's funds and or has willfully behaved in a manner that can be described as detrimental to the association and to a large extent, the university as a whole by the findings of the Judicial council or an accredited university body.
- IV. He or she has not fully paid dues or has not performed any other of such financial obligations to SPetSSA.
- V. He contravenes any of the procedures in this Article concerning eligibility of elections.

ARTICLE 22: BYE-ELECTION;

- I. Without prejudice to the provisions of this constitution, relevant bye-elections shall be held to fill vacancies created by virtue of any provision provided that any office(s) in the Executive Council is vacant and the provisions of Chapter Seven apply.
- II. The bye-election shall be held within two weeks of the creation of such vacancy.
- III. No office holder in the Association shall be eligible to contest a bye-election without first resigning from his office.
- IV. In any bye-election, unopposed candidates shall require fifty percent (50%) +1 votes of total valid votes cast.

ARTICLE 23: CHALLENGING ELECTIONS

- I. The provisional result of an election shall after it has been published be challenged within seventy-two (72) hours. No petition shall be allowed after the 72 hours.
- II. Any petition shall be presented to the Judicial council.
- III. The Judicial council shall without prejudice to any provision in this constitution, decide on the merits of the petition within forty-eight (48) hours upon receipt of the petition. The verdict of the Judicial council shall be final and irrevocable.

ARTICLE 24: DEPARTMENTAL APPOINTEES

1. DEPARTMENTAL SECRETARY

The Departmental Secretary shall:

- a) Record and keep minutes of all meetings.
- b) Publish the minutes of all meetings, at most one week for the benefit of the membership of the association.
- c) Keep records of the membership of the department.
- d) Summon all meetings at the department under the Representative's order stating the agenda, date, time, and venue of the meeting.
- e) Conduct all correspondence in the name of the department.
- f) In conjunction with The Representative and PRO prepare the semester budget for the department.

- g) Shall be in charge of all finances at the departmental level.

2. DEPARTMENTAL PRO

The Departmental PRO shall:

- a) Together with the editorial board, publicize all activities of SPetSSA and any other publication of the department.
- b) Be responsible for handling all social medial account of the department.
- c) Be the member of the editorial board.
- d) Perform any extra duties assigned by the President, Executive Council and the editorial board.

CHAPTER 8: ADMINISTRATION OF FUNDS

ARTICLE 25: ADMINISTRATION OF FUNDS

25.1 REVENUE OF SPETSSA

- a) The revenue of SPetSSA shall include:
 - i. Annual SPetSSA dues to be proposed from time to time by Executive Council subject to the approval of the Senate and paid by all members of the Association with thirty percent (10%) allocated to the department per semester as and when needed and eighty percent (80%) allocated to SPetSSA.
 - ii. Interest on funds invested by SPetSSA.
 - iii. Levies imposed on a member by the Judicial council as a fine.
 - iv. Proceeds from the sales of nomination forms and sales that may be organized by SPetSSA.
 - v. Donations and sponsorship made to SPetSSA.
 - vi. Any other legitimate source not stated above.

- b) For the avoidance of doubt, it is hereby declared that any committee of SPetSSA, Ad-hoc or standing, that receives any revenue or any other money on behalf of, or in trust for the association, shall unless otherwise stated by a resolution of the SPetSSA, pay such funds to the association through the Treasurer.

25.2 BANKING AND WITHDRAWAL OF FUNDS

- I. SPetSSA shall operate a bank account with any recognized bank in Tarkwa.
- II. The use of funds shall be restricted to or limited to the organization of the Association activities, functions, and programs approved by the Senate and administrative expenses.
- III. The signatories to the Account(s) shall consist of the Association President, the Patron of SPetSSA and the Treasurer.
- IV. All monies withdrawn from the Association account must be recorded by the Patron and the Treasurer stating the purpose, the date of signing the cheque, and the cheque number for auditing purposes.

- V. Any transaction, project, program or activity approved by the SPetSSA Senate shall be continued by a succeeding President of the Association.

25.3 BUDGET

- I. The budget of the Association shall be made available to the Executive Council 7 days after the beginning of the semester for corrections and finalizations.
- II. The finalized budget shall be presented to the Speaker of the SPetSSA Senate not later than the 9th day after the beginning of the semester and a sitting shall be called for such purpose not later than the 11th day after the beginning of the semester. The SPetSSA Senate shall have the power to approve the budget and copies of the approved budget shall be deposited at the offices of the Association, Heads of Department, the Dean of the SPetSSA, The Patron and a copy on the notice board at each department under SPETSSA within 120 hours after the resolution of SPetSSA Senate approving such budget.
- III. For the purpose of the clause, **(I) supra** above, the Finance Committee to draft this budget shall have the Vice President as an ex-officio member, the Treasurer as the Chairperson, the General Secretary as the secretary. The Organizer and the Women's commissioner shall be members as well.

25.4 AUDITING

- a) Presentation of the audit report to SPetSSA Senate shall be chaired by the Chairperson of the Judicial council and proceedings recorded by the Secretary of the JC with the other members at the high table.
- b) The Chairperson shall call on the Executives of SPetSSA to present the end of year's statement of account to SPetSSA Senate through the Financial Secretary.
- c) The Chairperson shall after the presentation of clause (b) above call the Audit Committee to submit their report through a representation by the Chairperson.
- d) Copies of the audit report and the end of year semester account shall be made available to the Senators by the respective committees.
- e) The Chairperson shall allow Senators to query the committees through a question-and-answer session after which Senate shall adopt or reject the end of year statement of account.

- f) Where an end of year statement of account is rejected by SPetSSA Senate, the Judicial council shall notify the Patron who shall cause the accounts to be re-audited by the Internal Audit Unit of the University.
- g) The findings and recommendations of the University Audit Unit shall be final and conclusive.
- h) Where it is established beyond doubts that, a member of the association has embezzled or misappropriated the funds of the association, the Patron shall cause the said member to refund twice the value of the said funds embezzled or misappropriated.
- i) Failure on the part of the member to pay the said refund shall be enough grounds to present him/her to the University Disciplinary Committee for punishment.

CHAPTER 9: MEETINGS

ARTICLE 26: GENERAL MEETINGS

- i. There shall be a general meeting within fourteen (14) days of the first semester at which the President shall present a policy speech.
- ii. There shall be at least one general meeting every semester (excluding the policy speech meeting) where the President shall listen and provide answers to issues bothering the student body.
- iii. In relation to the above sub-clause, the general meeting of the newly constituted Executive Council, with respect to listening and providing answers to issues shall begin from the next academic year.
- iv. Notwithstanding any provision of this constitution, the president may convene a meeting at any time and for any purpose that to him shall be deemed fit.
- v. A general meeting shall be deemed to have been duly convened with at least forty-eight (48) hour notice specifying date, place, time and agenda for the meeting.
- vi. In case of special/emergency meeting, at least twenty-four (24) hour notice specifying date, place, time and agenda is required.
- vii. The members of the association may call for a general meeting provided 10% of members of the association append their signature to the summon and a prior notice is sent to the President with an agenda stating their intention to summon such a meeting.
- viii. The President shall comply with such request within forty-eight (48) hours on receipt of the notice requesting for the meeting.

(a) QUORUM

- i. 30 members of the association present shall constitute a quorum
- ii. In a case of special or emergency meetings, the presence of the President and Secretary of the Association shall be enough to begin the meeting if the quorum is not obtained.
- iii. If at any meeting a quorum is not obtained fifty (50) minutes after the time of commencement, the meeting shall be adjourned and shall be called again within forty-eight (48) hours to discuss the very business for which there was no quorum.

- iv. If a quorum is not present in the subsequent meeting, the business of the meeting shall proceed without prejudice to any provision(s) of this constitution provided the President and the Secretary are present.
- v. Notwithstanding any provision of this Constitution, any decision(s) taken shall be binding on every member.

ARTICLE 27: EXECUTIVE COUNCIL MEETINGS

- i. The Executive Council shall meet at least twice (2) in a semester.
- ii. The President shall convene any emergency meeting when the need arises.
- iii. The President, General Secretary and three (3) other members shall form a quorum.
- iv. A simple majority of members present by voting or by popular acclamation shall be required to take decisions at meetings
- v. An emergency meeting may likewise be called on the request of four (4) members of the Executive Council, who shall subscribe their names and signatures to a written request, stating the issue to be considered at the meeting; and the President shall be obliged to grant such a request and convene the said meeting.
- vi. Two-third of the members shall form a quorum including the President and the Secretary.

CHAPTER 10: STANDING ORDERS

ARTICLE 28; STANDING ORDERS FOR MEETINGS

28.1 VOTING

- i. Voting shall be by fully accredited members and each member shall be entitled to one vote.
- ii. Voting shall include the right of members to make or second motion(s).
- iii. Voting shall be carried out by a simple majority, except where stated otherwise in this constitution.
- iv. The casting of vote shall be in the following order: Voting for, Voting Against and Abstaining. If the votes for and against an issue are equal in number, another vote is cast. In the event of a second tie, the Chairperson shall then cast his vote. The members abstaining shall be considered non-voting.

In the case of the SPetSSA Senate, where the vote of any motion is equal, the Speaker is to open the floor for a further debate after which voting shall be done again.

In the event of a second tie, the motion is taken to be lost.

- v. Voting shall be by secret ballot in the case of the formation of a standing committee, Electoral Commission, Impeachment and any or all matters which are politically inclined.
- vi. Notwithstanding the immediately preceding sub-clause (v), voting shall be by show of hands or as shall be determined by the Chairperson, unless otherwise stated in this constitution.

28.2 MOTIONS

- i. All full members have the right to file motions. However, in the case of the SPetSSA Senate, observers can file motions or proposals only when such motions are seconded by at least three (3) members of the SPetSSA Senate and that such motions shall be in writing and submitted to the Speaker.
- ii. All motions shall be submitted in writing and must be handed over to the Chairperson.
- iii. No motion(s) or amendment(s) of the same shall be opened for discussion until a full member of the association has seconded it.
- iv. No matter shall be discussed except it concerns an approved subject for the agenda.

- v. A motion shall be opened for discussion or amendment after the proposer and seconder have had the opportunity to speak in support of the motion. The debate must be limited to the immediate pending question by the chair. The Chairperson shall rule out-of- order any speaker failing to adhere to the subject under discussion.
- vi. No motion(s) or amendment(s), which has/have been accepted by the meeting, shall be withdrawn without the consent of the meeting; neither shall any addendum be made to a motion once accepted without such consent.

28.3 AMENDMENTS

- i. An amendment like a motion, must be moved, seconded and discussed in accordance with the procedure for motions outlined above.
- ii. No amendments shall be moved which by the Chairperson's ruling rescinds, negates, or destroys the original motion.
- iii. The mover and seconder of a substantive motion shall have the right to accept an amendment and if accepted, shall be discussed until the amendment under consideration has been disposed off. It is however, permissible for notice of further amendment to be given during discussion of the original amendment.
- iv. If an amendment is rejected, other amendment(s) may be moved on the original motion. If an amendment is carried, the motion as amended shall become the motion and shall be the question to which any further discussion may be addressed or upon which final vote is taken.

28.4 ORDER OF PRECEDENCE

- a) The Chairperson shall allow the following procedural motions to be put when there is already a proposition on the table in the following order of precedence:
 - i. Motion to withdraw a motion
 - ii. Motion to recess
 - iii. Motion to reverse the decision of the Chair
 - iv. Motion that a question or a proposal not be put now
 - v. Motion to limit or expand debate to a certain specified period of time
 - vi. Motion to refer the matter to a committee or sub-committee for investigation

- vii. Motion to close debate and
- viii. Motion that the motion be now voted upon.
 - b) If the motion that the motion be now voted upon has been seconded, no further discussion of the original question shall be allowed; if the motion is carried, only the proposer of the original question under discussion shall be allowed to speak before the original question is put to vote.
 - c) If the motion to “limit debate to a specified period of time” is carried, the Chairperson shall draw up a list of those wishing to make their first speech on the subject and allow each one an equal proportion of the specified period. The proposer shall be allowed a maximum of 5 minutes to sum up before the original motion shall be put to vote.
 - d) Should any procedural motion be defeated, 20 minutes shall elapse before such a motion can be accepted again by the Chair, unless the Chair is of the opinion that the circumstances have materially altered in the meantime.

28.5 POINT OF INTERVENTIONS

- a) In addition to discussions to an issue, the Chairperson shall recognize these requests from the members by the following order of precedence:
 - i. Point of Order
 - ii. Point of Correction
 - iii. Point of Information
- b) A point of order must be heard at all times except during the act of voting. It must deal with the conduct of procedure of the meeting and concern only such matters as indecorum, transgressions of standing orders, transgression of the Constitution, calling attention to the introduction of a matter not relevant to the question under consideration and the use of improper language.
- c) A point of correction shall be a factual presentation seeking to correct a statement made by the last speaker and must be heard at all times except during the act of voting. It must be strictly related to the subject under immediate discussion.
- d) When in the course of a meeting a member wishes to seek/give information from/to a speaker or the Chairperson, he may do so on a point of information. The chairperson shall have the option to comply with, or ignore the request.

28.6 BREACH OF ORDER

A member shall be guilty of Breach of Order when he:

- i. Uses offensive words in referring to a member or members
- ii. Uses objectionable language
- iii. Disturbs the orderly conduct of a meeting
- iv. Disobeys a lawful order from the Chairperson.

A member declared by the Chairperson in consultation with the Executive officers to be guilty of disorderly conduct shall, if he refuses to withdraw or apologize, be asked to leave the meeting. Failure to do so shall be liable to a fine of fifteen percent (15%) of the prevailing SPetSSA annual dues at the time.

CHAPTER 11

ARTICLE 29: HONORARIA

- a) Certificates of office and honour shall be presented to the members of the Executive, the Senate, Judiciary and other deserving persons at the Association's End of Year Leavers Party.
- b) Any member and or anyone who abuses this privilege shall forfeit this privilege
- c) Notwithstanding any provision of this constitution, any nomination for the award of any prize(s), certificates, etc. to any person shall be approved by the Executive Committee.
- d) Notwithstanding any provision of this constitution, the following categories of people shall not be awarded any certificate or prize:
 - i. Officers and persons who have resigned their post (except when for the purpose of contesting in an SRC election).
 - ii. Officers under suspension
 - iii. Persons against whom adverse findings have been established

ARTICLE 30: PATRONS

The patrons shall consist of the Dean the of Department and any other person(s) deemed fit by the Executive Council and who shall consent to serving that role.

ARTICLE 31: COMPLAINTS

Any registered member of the Association has the right to petition against any Executive member or a member of the Association for creating unsafe and /or uncongenial atmosphere or indecorous environment under the following procedure;

- i. The petitioner(s) shall write a petition to the Judicial council with full details and copies be sent to the member(s) involved
- ii. The member or petitioner and at least thirty (30) other members of the Association shall append their signatures.
- iii. The Judicial council shall be obliged to investigate the matter on receipt of the petition

- iv. The result of the investigation shall be communicated to members within seven (7) days after the JC has received the petition.
- v. Measures in line with the recommendations of the JC shall be implemented.

ARTICLE 32: INDEMNITY

Members of the Executive or any other student of the Association shall be reimbursed out of the funds of the Association against any indebtedness incurred exclusively for and on behalf of the Association. Such indebtedness shall be proven to have been incurred in the legitimate use of the office and shall be in line with the execution of duties as specified in this constitution or any resolution of the Association.

CHAPTER 12: REMOVAL FROM OFFICE

ARTICLE 33: REMOVAL FROM OFFICE

33.1 Resignation;

- a) Any member of the Association shall communicate his resignation to the respective head of the two (2) working bodies of the Association in writing seven (7) days before the day of resignation.
- b) The head of that body of the Association shall make such resignation known to the general members of the Association within four (4) days on receipt of this letter of resignation as well as copy the Association Judicial council Chair.
- c) In a situation of an en bloc resignation of the executive officers, they shall communicate their resignation to the Judicial council through the Judicial council Chair and copied to the SPetSSA Senate through the Speaker.
- d) The Association Judicial council Chair shall convene an Association meeting within seven (7) days on receipt of such resignation with respect to the preceding paragraph and shall form an Interim Management Committee of the Executive Council until fresh elections are held.
- e) Any officer vacating his post shall handover all documents and properties of the Association to the Head of the Executive Council within twenty-four (24) hours. However, if the Executive Council resigns en bloc, it shall handover all documents and properties of the Association in their possession to the Head of the Judicial council within forty-eight (48) hours of their resignation.

33.2 Grounds for Removal;

An Executive Council member shall be removed from office if found in accordance with the provision of this article:

- a) To have acted in willful violation of the oath of office set out in this constitution or in any violation of any provision of this constitution.
- b) To have embezzled or misappropriated funds of the Association.

- c) To have conducted himself in a manner that brings or is likely to bring the name of the Association or the University into disrepute or ridicule.
- d) To be inefficient or negligent in the discharge of his duties.
- e) To be incapable of performing the functions of his office by reason of infirmity of mind or body.
- f) To have deferred his course of study.

33.3 Impeachment;

- i. Any student may give notice in writing addressed to the Judicial council to commence impeachment proceedings against any elected officer provided that such notice shall be authenticated by the signatures of at least ten (10) students from each department. In the case of faculty representative, a student from that faculty may give notice in writing addressed to the Judicial council provided that such letters shall be authenticated by at least forty (40) students from the faculty with their signatures. In the case of the Women's Commissioner, fifteen percent (15%) of the total female population need to append their signatures to the said petition written by a female student.
- ii. The Judicial council shall within seven (7) days upon receipt of the notice of impeachment examine and publish its report on the issue. If there is any merit for impeachment, the report shall be submitted to the Legislative Assembly and posted on all notice boards for the consumption of the entire student body.
- iii. Copies of the petition shall be sent to respective officer(s) or member(s) as in the preceding paragraphs three (3) days before meeting the Members of the Legislative Assembly on the floor of the house.
- iv. Such officer(s)/member(s) shall be given the chance to defend himself or themselves by oral or written statements before a vote of no confidence is cast.
- v. Any such officer(s)/member(s) shall lose all benefits and /or honors given or to be given to him/ them, if impeached.
- vi. The said member of the Executive Council shall have the right to appeal to the Judicial council.

33.4 Vote of No Confidence;

Notwithstanding and without any prejudice to this constitution, the said officer(s)/member(s) against whom impeachment charges have been preferred shall be officially removed from office on the passing of a vote of no confidence by at least two- thirds (2/3) majority of the entire membership of the Legislative Assembly and be supervised by Speaker, Judicial council Chairperson in consultation with the Electoral Commission.

CHAPTER 13: AMENDMENTS

ARTICLE 34: AMENDMENTS

- a) Any part(s) or section(s) or clause(s) and or article(s) of this constitution shall be subject to alteration(s).
- b) Any member of the Association may call for an amendment(s) to this constitution, and such amendment(s) shall bring a notice duly signed by at least thirty (40) Students from the Association as agreeing to call for the amendment(s).
- c) Any proposed amendment(s) of this constitution shall be delivered to the Judicial council and the Judicial council shall submit a copy of the proposal to the SPetSSA Senate within seven (7) days on receipt of the proposal for discussion.
- d) The SPetSSA Senate shall upon receipt of the proposal, debate and adopt it by resolution of not less than three-quarters (3/4) majority of members present and voting.
- e) After the adoption by the SPetSSA Senate, a general student forum shall be organized by the Judicial council for further debate and adoption by threequarters (3/4) majority of students present and voting.
- f) For the purpose of any amendment(s) in part or whole to this constitution, a written notice on such proposed amendment(s) shall be published for the perusal of members of the members of the Association at least seven (7) days before the day of meeting at which such proposed amendment(s) are to be discussed.

CHAPTER 14: TRANSITION AND HANDOVER

ARTICLE 35: TRANSITION AND HANDOVER

The transition period shall be before, during and after handover ceremony.

- a) Change of signatories to the incoming executive body shall be done at most two (2) days before handover.
- b) The outgoing Judicial council Chair together with the treasurer shall take the incoming Executive Council round to see movable and immovable assets of the Association at least three (3) days before handover.
- c) All outgoing executives shall be responsible to give the needed orientation to the incoming executive body before handover.
- d) All necessary office keys and documents shall be handed over to the incoming executives at least three (3) days before handover.
- e) Without prejudice to any provision of this constitution, the Executive Council shall, within thirteen (13) days on assumption of office, take stock of all assets of the Association and shall present a report to the members of the Association during the presentation of the policy speech.
- f) It is hereby declared that, all office documents and properties of the Association shall be handed over to the officers concerned. Any outgoing officer who shall refuse to handover such documents or who shall be proven beyond reasonable doubt to have sneaked-out some important transitional documents shall by this declaration have violated his oath of office and shall therefore be dealt with in accordance with the laws.
- g) The incumbent administration shall arrange and organize the handover ceremony in collaboration with the incoming executives within fourteen (14) days after declaration of election results.
- h) The handover ceremony shall be done in the presence of the members of the Association.

CHAPTER 15: MISCELLANEOUS

Article 36: MISCELLANEOUS

- a) The entire Executive Council shall be accountable to the members of the Association and shall individually and collectively be responsible for the Association.
- b) The Association shall celebrate its week, hereinafter referred to as “SPetSSA WEEK” which shall fall within the Second Semester of the Academic Year, with the actual date to be fixed by the Executive Council.
- c) The Association shall supervise the orientation of freshmen within three (3) weeks upon arrival of the first-year students.
- d) The Association shall provide every freshman of the department with a copy of the SPetSSA constitution at the expense of the freshmen.
- e) Any person or body of persons can for the purpose of contesting elections align themselves or form a common front.
- f) No student shall serve on more than one office except otherwise stated in this constitution
- g) The Association shall organize a welcome for its freshmen and women which shall fall within the First Semester of the Academic Year

ARTICLE 37: INTERPRETATION

The Judicial council shall have powers to rule on matters on which the constitution is silent or ambiguous and such ruling be expressed in precise terms and published in an annex to the constitution. Such rulings shall become a precedent and binding on the Association until amended or revoked in accordance with the provisions of this constitution. In the construction of this Constitution, unless there is anything to the contrary in the subject or content thereto, the several words hereinafter mentioned or referred to shall have the meaning and include the following:

- (i) “Association” means The School of Petroleum Studies Students’ Association.
- (ii) “He”, “His” or “Him”, shall refer to any person, male or female.
- (iii) “House” refers to the members of the Association at a meeting.
- (iv) “Oath” includes affiliation specified in the Constitution.

- (v) “Secret Ballot” means the use of the paper or electronic means as determined by the Electoral Commission of the Association to the approval of the aspirants.
- (vi) “SPetSSA” means School of Petroleum Studies Student Association.

ARTICLE 38: INVITATIONS TO MEETINGS

- a) The President in consultation with other members of the Executive Council shall have the power to nominate delegates, representatives or participants to any conferences, seminars or projects to which the Association has been invited.
- b) The delegates, representatives or participants shall present a written report to the Association through the President, ninety-six (96) hours after such conference, seminars or projects.
- c) The reports shall be published by the General Secretary on all boards within three (3) days after its submission to the Executive Council.

ANNEX B: TRANSITIONAL PROVISIONS.

- a) A person who immediately before the coming into force of this Constitution held office shall be deemed to have been appointed or elected as far as it is consistent with the provisions of this constitution for the said person to hold office under this constitution until expiration of his or her tenure of office. The existing Judicial council, notwithstanding any provision in this constitution, shall appoint Interim Officers to hold officers until new officers are elected.
- b) The Judicial council shall ensure that all organs, systems and structures for smooth running of the Association are put in place within fourteen (14) days after the successful promulgation of this Constitution.

CHAPTER 16: THE OATH OF OFFICERS

THE OATH OF THE PRESIDENT

I,.....(name) having been elected to the high office of the President of the SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION (SPetSSA) of the University of Mines and Technology, in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will be faithful and true to SPetSSA; that I will at all times preserve, protect and defend the constitution of SPetSSA; and that I dedicate myself to the services and well-being of the members of the Association and to do right to all manner of persons. I further (solemnly swear)/(solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of this constitution and suffer the penalty there of (So help me God).

(To be administered by the incoming Judicial council Chairperson during the handing over ceremony)

THE OATH OF THE VICE PRESIDENT

I,.....(name) having been elected to the high office of the Vice President of the SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION (SPetSSA) of the University of Mines and Technology, in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will be faithful and true to SPetSSA; that I will at all times preserve, protect and defend the constitution of SPetSSA; and that I dedicate myself to the services and well-being of the members of the Association and to do right to all manner of persons. I further (solemnly swear)/(solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of this constitution and suffer the penalty there of (So help me God).

(To be administered by the incoming Judicial council Chairperson during the handing over ceremony)

THE OATH OF THE JUDICIAL COUNCIL CHAIRPERSON

I,..... (name), having been appointed as the Judicial council Chairperson of the SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION (SPetSSA) of the University of Mines and Technology do in the name of the Almighty God (solemnly swear)/(solemnly affirm), that I will bear the true faith and allegiance to SPetSSA as by law established; that I will uphold the sovereignty and integrity of SPetSSA; and that I will faithfully and conscientiously perform the functions of my office without fear or favour, affection or ill-will, and that I will at all times uphold, preserve, protect and defend the constitution and law of

SPETSSA. I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of SPetSSA and suffer the penalty there of. (So, help me God).

(To be administered by the outgoing Judicial council Chairperson during the handing over ceremony)

THE OATH OF OTHER EXECUTIVE MEMBERS

I,..... (name) having been elected to the high office of the..... (name of office) of the SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION (SPetSSA) of the University of Mines and Technology do in the name of the Almighty God (solemnly swear)/(solemnly affirm); that I will be faithful and true to the University; that I will at all times preserve, protect and defend the constitution of SPetSSA; and that I dedicate myself to the services and well-being of the students of the University and do right to all manner of persons. I further (solemnly swear)/ (solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of this constitution and suffer the penalty there of. (So, help me God).

(To be administered by the Sworn-In President during the handing over ceremony)

THE OATH OF THE JUDICIAL COUNCIL

I,..... (name), having been appointed as a member of the Judicial council of the SCHOOL OF PETROLEUM STUDIES STUDENTS ASSOCIATION (SPetSSA) of the University of Mines and Technology do in the name of the Almighty God (solemnly swear)/(solemnly affirm), that I will bear the true faith and allegiance to SPETSSA as by law established; that I will uphold the sovereignty and integrity of SPetSSA; and that I will faithfully and conscientiously perform my duties without fear or favour, affection or ill-will, and that I will at all times uphold, preserve, protect and defend the constitution and laws of SPETSSA. I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of SPetSSA and suffer the penalty there of. (So, help me God).

(To be administered by the incoming Judicial council Chairperson upon formation)

OATH OF ALLEGIANCE FOR COMMITTEE MEMBERS

I....., having been appointed as a member of the committee; do in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will bear the true faith and allegiance to SPetSSA as by law established; that I will uphold the sovereignty and integrity of SPetSSA; and the institution as a whole; I will preserve, protect and defend this constitution.

(To be administered by the SPetSSA President)

RATIFICATION FORM

(To be completed by the appointees of SPetSSA and a witness)

I....., (surname first) of (class) declare that I have fully accepted the responsibilities and obliged to serve as the/as a member of (position) of the Committee under the administrative year of SPetSSA. I further declare that I will subject myself to true, professional, selfless, and dedicated service. I promise to be faithful and transparent in all matters concerning SPetSSA and the general membership of the Association. I shall submit myself to the full rigors of the laws of SPetSSA and be fully answerable and responsible for my deeds should I fail to uphold and protect the good name of SPetSSA in the execution of my duties.

Witnessed by:

.....

(Name in full)

(Program/Year)

.....

(Signature of Witness) (Date)

I hereby accept the offer in the letter and promise to comply with the terms stated: SO, HELP ME GOD.

.....

(Signature of appointee) (Date)

(N/B) Please attach one recent passport sized photograph

FIRST DRAFTED AND DRAWN BY THE FOLLOWING

- | | |
|-----------------------------|-------------|
| 1. Agyari Philemon Karikari | Chairperson |
| 2. Venunye Wilbert Adri | Secretary |
| 3. Frimpong Manso Emmanuel | Member |
| 4. Anderson Kojo Obed | Member |

SECOND DRAFT DRAWN BY THE FOLLOWING

- | | |
|---------------------------------|----------------------|
| 1. Amissah Emmanuel Ato Mensah | Chairperson |
| 2. Debrah Alberta Selikem Adwoa | Secretary |
| 3. Agbeke Chris Dela Yao | Organizing secretary |
| 4. Jotham Blay | Member |
| 5. Moses Tikoli Nkrumah | Member |
| 6. Manasseh Assiako | Member |
| 7. Salman Tasiyu Bawa | Member |
| 8. Louis Bonney Junior | Member |
| 9. Boadi Derrick Kwaku | Member |

THIRD DRAFT DRAWN BY THE FOLLOWING

- | | |
|---------------------------|-------------|
| 1. Justice Oko Afun | Chairperson |
| 2. Ellen Edziyie | Secretary |
| 3. David Mbachu | Member |
| 4. Etiam Anthony | Member |
| 5. Winifred Baffoe | Member |
| 6. Mohammed Ibrahim Saani | Member |

FINAL DRAFT DRAWN BY THE FOLLOWING

- | | |
|-------------------------------|-------------|
| 1. Andoh Isaac | Chairperson |
| 2. Louisca Arloo-Anlimah Snr. | Deputy. |
| 3. Abigail Eyram Komedia | Secretary |
| 4. Mensah Angelous Kwadwo | Member |
| 5. Justice Amponsah Cudjoe | Member |
| 6. Emmanuella Dorsah | Member |